

JACKSON, J., dissenting

All of this is to say that our Government has long functioned under an accountability paradigm in which no one is above the law; an accused person is innocent until proven guilty; and criminal defendants may raise defenses, both legal and factual, tailored to their particular circumstances, whether they be Government officials or ordinary citizens. For over two centuries, our Nation has survived with these principles intact.

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With that understanding of how our system of accountability for criminal acts ordinarily functions, it becomes much easier to see that the majority's ruling in this case breaks new and dangerous ground. Departing from the traditional model of individual accountability, the majority has concocted something entirely different: a Presidential accountability model that creates immunity—an exemption from criminal law—applicable only to the most powerful official in our Government.

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So, how does this new Presidential accountability model work? An initial problem is the lack of clarity regarding what this new model entails. The majority announces only its most basic contours. See *ante*, at 606 (asserting that “the nature of Presidential power requires that a former President have some immunity from criminal prosecution for official acts during his tenure in office”). Instead of no immunity (the individual accountability model) or an unqualified grant of absolute immunity for “*all* official acts,” Brief for Petitioner 44 (emphasis added), the majority purports to adopt

finement, or even taking his life, are not crimes if done with proper public authority”); see also 2 Robinson § 141(a) (describing the public-authority defense, under which a defendant may escape liability if he “has been specifically authorized to engage in the conduct constituting the offense in order to protect or further a public interest”); Brief for United States 29–30, and n. 11; *ante*, at 671, n. 3 (SOTOMAYOR, J., dissenting) (citing *Nardone v. United States*, 302 U. S. 379, 384 (1937)).